

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lucinda Richard	Team: Team # 6	CCRB Case #: 200606214	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 05/12/2006 5:10 PM	Location of Incident: opposite § 87(2)(b)	18 Mo. SOL 11/12/2007	Precinct: 67
Date/Time CV Reported Sat, 05/13/2006 6:08 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 05/13/2006 6:08 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Megan Omalley	06355	930859	070 PCT
2. SGT John Kocher	92403	924034	070 PCT
3. POM Lawrence Sidman	30025	905058	070 PCT
4. POM Thomas Porter	04454	931900	070 PCT
5. POM Michael Katinas	14116	936846	070 PCT
6. POM Steven Gordon	11234	934951	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Stephen Lane	02372	891704	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT John Kocher	Abuse: Sgt. John Kocher stopped § 87(2)(b)	A . Exonerated
B . POM Lawrence Sidman	Abuse: Sgt. Lawrence Sidman stopped § 87(2)(b)	B . Exonerated
C . SGT John Kocher	Abuse: Sgt. John Kocher frisked § 87(2)(b)	C . Exonerated
D . POM Lawrence Sidman	Abuse: PO Lawrence Sidman searched § 87(2)(b)	D . Unsubstantiated
E . POM Thomas Porter	Abuse: PO Thomas Porter frisked § 87(2)(b)	E . Exonerated
F . POM Thomas Porter	Force: PO Thomas Porter used physical force against § 87(2)(b)	F . Exonerated
G . SGT John Kocher	Force: Sgt. John Kocher used physical force against § 87(2)(b)	G . Exonerated
H . POM Lawrence Sidman	Force: PO Lawrence Sidman used physical force against § 87(2)(b)	H . Exonerated
I . POM Michael Katinas	Force: PO Michael Katinas used physical force against § 87(2)(b)	I . Exonerated
J . POM Steven Gordon	Force: PO Steven Gordon used physical force against § 87(2)(b)	J . Exonerated
K . POF Megan Omalley	Force: PO Megan O'Malley used physical force against § 87(2)(b)	K . Exonerated

Synopsis

On May 12, 2006, at approximately 5:00 p.m., an unidentified male brandished a firearm at § 87(2)(b). § 87(2)(b) started arguing with the unidentified male's mother in her restaurant, § 87(2)(b) located on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. At 5:10 p.m., a female called the police and stated that there was a black male wearing a white tank top with a gun at the above location. The 911 call originated from § 87(2)(b). Sgt. John Kocher and Lawrence Sidman responded and stopped § 87(2)(b) (Allegations A and B). Then, Sgt. Kocher frisked § 87(2)(b) and Officer Sidman allegedly searched him (Allegations C and D). Officer Megan O'Malley and Officer Thomas Porter arrived on scene, as did Officer Michael Katinas and Officer Steven Gordon. While Sgt. Kocher and Officer Sidman spoke to a female complainant across the street, Officer O'Malley, Officer Porter, Officer Katinas and Officer Gordon detained § 87(2)(b) until further information could be obtained about the crime in question. During that time, Officer Porter allegedly frisked § 87(2)(b) a second time (Allegation E). Then, Sgt. Kocher told the officers that the female across the street had identified § 87(2)(b) as having stabbed her boyfriend earlier that day. Officer O'Malley went to place § 87(2)(b) in handcuffs and a struggle ensued as § 87(2)(b) physically resisted, thereby causing him to fall through the window of the Laundromat in front of which he was standing. Once § 87(2)(b) picked himself up off the ground, he fled from officers into the middle of the street. There, all six officers allegedly beat up § 87(2)(b) kneeled on his head, and ground their feet into his buttocks his back, and the backs of his knees (Allegations F, G, H, I, J and K). § 87(2)(b) was arrested § 87(2)(b). § 87(2)(g) it is recommended that Allegations A, B, C, and E be exonerated. § 87(2)(g) it is recommended that Allegation D be unsubstantiated. § 87(2)(g) it is recommended that Allegations F, G, H, I, J, and K be exonerated.

Summary of Complaint

On § 87(2)(b), § 87(2)(b) was treated at § 87(2)(b) (enc. 29a-cc). Upon arrival at the hospital, § 87(2)(b) stated he was involved in an altercation with the police and he thereby sustained a laceration (approximately 1 inch long) to his right middle finger. He denied any further injuries. His chief complaint was as follows: "I have a cut on my hand." Later, § 87(2)(b) complained of a head injury and pain to his left knee, chest, and abdomen.

On June 16, 2006, § 87(2)(b) was interviewed at the CCRB (enc. 13a-e). § 87(2)(b) is a § 87(2)(b) black male, § 87(2)(b), with black hair and brown eyes.

On May 12, 2006, § 87(2)(b) was wearing blue jeans, a white polo shirt, and a black sport jacket. § 87(2)(b) had been walking north on § 87(2)(b) coming from the Flatbush Junction train station. He stopped in front of a privately owned Laundromat on § 87(2)(b) near § 87(2)(b) § 87(2)(b) did not know the address and the name had been washed off the storefront). He was standing alone in front of the Laundromat when a black man approached him and pointed a gun at him. § 87(2)(b) saw the man come from a restaurant named "§ 87(2)(b)" that is located across the street from the Laundromat. The man did not say or do anything before or after pointing the gun. § 87(2)(b) asked the man, "What happened?" The man did not respond, but went back into the restaurant across the street upon hearing sirens. § 87(2)(b) stayed where he was when he heard the sirens approaching. Initially, § 87(2)(b) said that ten-to-fifteen minutes after he first heard sirens, police officers arrived. During those ten-to-fifteen minutes, § 87(2)(b) § 87(2)(b) and a large crowd of § 87(2)(b)'s family members and other civilians gathered. § 87(2)(b) did not call his friends or family to the scene. Later, § 87(2)(b) said the crowd gathered after the second two officers arrived. Still later, he said § 87(2)(b) arrived at the exact moment that the second group of officers arrived. He thought they must have heard the commotion from down the block. Later, § 87(2)(b) said that seconds after the man went into the restaurant, PO1 and PO2 arrived in a marked patrol car without its sirens activated. PO1, a white male, 5'6" tall, with black hair and dressed in uniform, was identified through the investigation as Sgt. John Kocher. PO2, a white male, between 5'9" and 6'0" tall, 230 pounds, with sandy brown hair, and dressed in uniform approached him, was identified through the investigation as Officer Lawrence Sidman. § 87(2)(b) did not call the police, nor was he aware of anyone else calling the police. Initially, § 87(2)(b) said Sgt. Kocher and Officer Sidman asked him what had happened, and whether he had a gun on him before frisking and searching him. § 87(2)(b) told the officers that someone

had pointed a gun at him. Later, § 87(2)(b) said that Sgt. Kocher and Officer Lawrence Sidman approached him and Sgt. Kocher immediately frisked him, patting his palms down § 87(2)(b)'s whole body from his shoulders to his ankles. At the same time, Officer Sidman entered all of § 87(2)(b)'s jeans and jacket pockets. Sgt. Kocher and Officer Sidman asked § 87(2)(b) if he had anything on him and he said no. They did not discover any weapon on § 87(2)(b)'s body. Sgt. Kocher and Officer Sidman told § 87(2)(b) they were frisking and searching him because someone had a gun. They did not give § 87(2)(b) a description of the person with the gun, nor did they ask for § 87(2)(b)'s ID.

About two minutes later, Officer "Molly" (a white female, 5'7" tall, 144 pounds, with brown hair and blue eyes, and dressed in uniform—identified through the investigation as Officer Megan O'Malley) arrived. When Officer O'Malley pulled up in a marked police car with PO3 (a white male in uniform—identified through the investigation as Officer Thomas Porter), § 87(2)(b) was talking with Sgt. Kocher and Officer Sidman, telling them what had happened and where the man with the gun went. Another marked patrol car with uniformed white officers arrived at about the same time as Officer O'Malley and Officer Porter, bringing the count to five-to-seven police officers. Officer O'Malley approached § 87(2)(b) who was standing three-to-five feet in front of the Laundromat with his back to the storefront and the door to his right. Officer O'Malley was standing at a forty-five degree angle to the left of and very close to § 87(2)(b)'s body, while Sgt. Kocher and Officer Sidman were standing in front of him. Officer O'Malley, in a hostile tone and loud, authoritative volume of voice, asked § 87(2)(b) for his ID, which he took out of his wallet in his pants pocket and gave to her. When Officer O'Malley saw § 87(2)(b)'s Florida driver's license, she asked what he was doing there. § 87(2)(b) replied that he lived there. Again, Officer O'Malley asked what he was doing there. § 87(2)(b) said he lived on the block. She asked where the gun was and § 87(2)(b) said, "Officers just asked me that." Officer O'Malley asked other questions, but § 87(2)(b) could not remember them because six-to-seven officers were asking him questions at the same time. The officers asked where the man with the gun went, to which § 87(2)(b) said he was across the street. Another officer asked for a description of the man with the gun, to which § 87(2)(b) replied that he only knew that the man was black. § 87(2)(b) did not see any officer go into the restaurant across the street.

Initially, § 87(2)(b) said, as an officer was asking him something, Officer O'Malley tugged the back of § 87(2)(b)'s left shoulder and swung him around to face the Laundromat's glass storefront. He did not know which hand Officer O'Malley used to take hold of his left shoulder. Later, § 87(2)(b) said Officer O'Malley pulled him around by his arm to face the storefront and when she tried to push him against the glass, his right hand went through and broke the glass. Still later, § 87(2)(b) said Officer O'Malley grabbed his left arm right above his elbow and half-pushed, half-pulled his left arm with enough force that his upper body turned around to face the storefront. As § 87(2)(b)'s upper body turned towards the glass, he felt like he was falling, so he put up his right hand, open-palmed, to shield his face from hitting the glass. His right hand went through the glass and he caught his body weight on his right foot to stop him from falling. To avoid cutting himself on the broken glass that was at about his belly-button level, § 87(2)(b) tried to tip-toe to get away from the jagged glass. While § 87(2)(b) was looking at the blood on his right hand, he saw Officer O'Malley behind him and to the right of his body pulling out her handcuffs. Other officers were standing behind § 87(2)(b) holding his body in position so Officer O'Malley could put him in handcuffs. He felt one hand on the top of each of his shoulders and another hand on the left side of his waist. Upon seeing her handcuffs, § 87(2)(b) became hostile, saying, "Lock me up for what? I don't want to get locked up. I didn't do anything. I'm bleeding. I need to go to the hospital." Officer O'Malley placed one cuff on § 87(2)(b)'s right wrist.

Then, § 87(2)(b) "went blank." The next thing he remembered was lying facedown on the double-solid yellow line in the middle of the street. He did not remember how he got from the Laundromat storefront to the middle of the street. He did not know if traffic had been stopped or not. About ten officers were beating § 87(2)(b) up. He felt one knee on his head above his left temple. He felt the bottoms of many feet grinding into the backs of his knees, his back, and his buttocks. § 87(2)(b) could not breathe or talk while the officers were beating him up. He did not say anything to the officers. At that point, there were six-to-eight patrol cars, apart from the original two in which Sgt. Kocher, Officer Sidman, Officer O'Malley, and Officer Porter arrived. § 87(2)(b) did not know when those six-to-eight cars arrived. Then, § 87(2)(b) "blacked out." He woke up later in the holding cell of the station house in a "pool of blood." Two other males were present and they told § 87(2)(b) they thought he was dead. He did not remember being transported from the incident location to the station house or going through arrest processing at the precinct. § 87(2)(b) was charged § 87(2)(b). § 87(2)(b) stated that he was compliant during the whole incident and did not resist arrest in any way.

On May 12, 2006, around 5:10 p.m., Officer O'Malley and Officer Porter responded to a radio run of a 911 call reporting that there was a black male with a firearm on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. The exact address from which the 911 call originated was § 87(2)(b). A physical description was provided, but Officer O'Malley did not recall it at the time of her interview. When Officer O'Malley and Officer Porter arrived on the scene, Sgt. Kocher and his operator were already present and speaking to a female complainant on the east side of § 87(2)(b). § 87(2)(b) is located on a busy two-way street in a combination residential-commercial area. Sgt. Kocher pointed to § 87(2)(b) (a black male wearing a brown shirt), who was standing about fifteen-to-twenty feet away from Sgt. Kocher on the west side of the street and behind Officer O'Malley's vehicle, and told them to stop him. Officer O'Malley and Officer Porter exited their vehicle, stopped § 87(2)(b) and asked him to produce ID. § 87(2)(b) stood face to face with Officer O'Malley and Officer Porter—§ 87(2)(b) was facing the street and the two officers were facing a barbershop behind him. Officer Porter gave § 87(2)(b) a "precautionary safety frisk" and, after determining that he did not have any weapons on him, took his ID from him. Officer O'Malley asked § 87(2)(b) a series of questions: if he lived around there, was aware of anything that was going on in the area, had seen anything, knew who had called 911 or why they did so. At that time, § 87(2)(b) became extremely belligerent and said repeatedly to Officer O'Malley in a slightly raised voice, "This is fucking bullshit. I didn't fucking do anything. Fuck you." While saying that, § 87(2)(b) shrugged his shoulders and sucked his teeth a lot. Officer O'Malley explained to § 87(2)(b) that there was a report of an armed assault in that area. Meanwhile, Sgt. Kocher was speaking to a second female complainant on the East Side of § 87(2)(b). Officer O'Malley did not know what the second female said to Sgt. Kocher, but he told Officer O'Malley to continue detaining § 87(2)(b) while he spoke to her. Officer Katinas and Officer Gordon arrived last and they were canvassing the area and looking for witnesses to the incident that prompted the 911 call while Officer O'Malley and Officer Porter detained § 87(2)(b).

Sgt. Kocher then came over and told Officer O'Malley that the second female complaint had just informed him that § 87(2)(b) along with another unarmed male, had stabbed the woman's boyfriend a few minutes before the police arrived. Then, Sgt. Kocher walked back over the second female and they remained in the middle of § 87(2)(b). Officer O'Malley tried to call the 67th Precinct to see if they had any reports of a stabbing. While she made that call, § 87(2)(b) became more belligerent and said, "This is fucking bullshit, I'm out of here." Officer O'Malley told him to hold on while she tried to clear the situation up with the 67th Precinct. § 87(2)(b) stepped forward, pushed Officer O'Malley on her upper left chest area using his left hand, "like, to get out of they way," and said, "Fuck you, I'm out of here. I'm leaving." Officer O'Malley was standing slightly to § 87(2)(b)'s left side at the time that he pushed her. Officer O'Malley reiterated that § 87(2)(b) could not leave until she cleared the situation up. Then, § 87(2)(b) held up his right hand in a fist and started to a swing it at Officer O'Malley, aiming towards somewhere between the top of her chest and her face. (At that point, Officer O'Malley had been talking to § 87(2)(b) for about two minutes.) § 87(2)(b)'s fist did not make contact with any part of her body. Officer O'Malley responded by stepping back, grabbing his right arm, and turning him around to handcuff him for her safety. She did not grab his left shoulder, but she did place one hand on his left shoulder while turning him around. At that point, § 87(2)(b)'s demeanor was combative and aggressive and he continued cursing, screaming, and swinging his arms until he was handcuffed. Officer O'Malley pushed him towards the storefront window to facilitate handcuffing him, and then, because of the momentum of pushing him, § 87(2)(b)'s right hand, which was still outstretched from trying to swing at Officer O'Malley, broke the storefront window. Once his hand broke the window, his whole body followed and he fell to the ground. Officer O'Malley and Officer Porter stepped back because they did not want § 87(2)(b) to swing at them with a piece of glass in his hand. § 87(2)(b) immediately got up and ran towards the middle of the street where he encountered Sgt. Kocher who stopped him from running any farther. Sgt. Kocher, Officer O'Malley, and Officer Porter then attempted to place § 87(2)(b) in handcuffs. He continued to punch, swing, and kick at officers. Officer O'Malley was not sure if § 87(2)(b) brought himself to the ground or if officers did so, but he was lying on the ground just west of the solid yellow line in the middle of the street when he was finally placed in handcuffs. It took Sgt. Kocher, Officer O'Malley, and Officer Porter one-to-two minutes to handcuff § 87(2)(b). Officer Porter was with Officer O'Malley for the entirety of the incident.

§ 87(2)(b) was not searched until after he was arrested. No weapon was ever recovered in connection with § 87(2)(b)'s arrest. At no point were ten officers beating § 87(2)(b) up (Officer O'Malley pointed out that there were only six officers on scene). No officer ever placed one knee on § 87(2)(b)'s head.

and another knee on his left temple while attempting to handcuff him. No officer ever ground the bottom of their feet into the backs of § 87(2)(b)'s knees, back, and buttocks. § 87(2)(b) was conscious the entire time and was never lying in a pool of his blood at the station house. § 87(2)(b) sustained a small laceration on his right middle finger from the broken glass from the storefront window. He was immediately treated and taken to § 87(2)(b). Officer O'Malley did not observe any other injuries on § 87(2)(b).

Subject Officer Statement: Officer Thomas Porter

On September 13, 2006, Officer Thomas Porter was interviewed at the CCRB (enc. 23a-b). Officer Porter is § 87(2)(b) white male, § 87(2)(b), with red hair and blue eyes. On May 12, 2006, Officer Porter and Officer Megan O'Malley worked from 3:00 p.m. to 11:35 p.m., were assigned to patrol sectors G and H in RMP number 1921, and were dressed in uniform. He read the following from his memo book: "1700 hours, received a radio run of a 10-10 male with a firearm at § 87(2)(b) 92 Charlie" (enc. 22a-d).

May 12, 2006, at approximately 5:10 p.m., Officer Porter and Officer O'Malley responded to a radio run of a man with a gun at § 87(2)(b) in Brooklyn. When they arrived, Sgt. Kocher and his recorder (whose name Officer Porter did not recall) were talking to the complainant (whose gender Officer Porter did not recall) on the opposite side of the street from where Officer Porter and Officer O'Malley pulled up. Sgt. Kocher told them to stop § 87(2)(b) a black male that was standing behind them (Officer Porter did not recall what he was wearing). They asked § 87(2)(b) to come over to them and he complied. Either Officer Porter or Officer O'Malley frisked § 87(2)(b) for their own safety, to make sure he did not have any weapons on him (he did not recall which one conducted the frisk). Officer Porter did not recall his role in stopping § 87(2)(b). Officer O'Malley and Officer Porter asked § 87(2)(b) routine questions, such as where he was coming from and where he was going. Officer Porter did not recall any of § 87(2)(b)'s responses or whether he responded at all. Officer Porter did not know if Officer O'Malley obtained § 87(2)(b)'s ID, but Officer Porter did not do so. About two minutes later, § 87(2)(b) became agitated and started flailing his arms in the air and swearing at the officers, saying repeatedly and in a loud voice, "fuck you." Then he swung one of his arms at Officer O'Malley who ducked and grabbed his hands to turn him around and handcuff him. This happened in one fluid motion, and as a result, the arm § 87(2)(b) used to swing at Officer O'Malley broke the glass window of the store that they were standing in front of. No other part of his body went through the glass and he did not fall to the ground. Officer Porter and Officer O'Malley backed up to make sure § 87(2)(b) did not have any glass in his hands that he could use to injure them and § 87(2)(b) took off running. Officers apprehended and handcuffed him a couple hundred yards away, but Officer Porter did not know which officers were involved. Officer Porter was standing next to Officer O'Malley while this altercation took place, but he did not recall what he was doing when § 87(2)(b) swung at his partner or during the rest of the altercation.

Officer Porter was not involved in handcuffing § 87(2)(b). Officer Porter did not know what position § 87(2)(b) was in when officers handcuffed him or if officers struggled in doing so. Officer Porter did not know what he or Officer O'Malley was doing while § 87(2)(b) was placed in handcuffs. § 87(2)(b) did not sustain any visible injuries, other than a cut on one of his fingers from the glass window. Officer Porter learned of the cut because § 87(2)(b) was taken to the hospital, but Officer Porter did not know anything about the location or severity of the cut. Approximately four-to-five other officers were present during the incident, but Officer Porter did not know who they were or when they arrived. Officer Porter did not file a UF 250 for § 87(2)(b) and he did not know if Officer O'Malley filed one. Officer Porter assumed § 87(2)(b) was searched after being placed in handcuffs (because all arrestees are searched), but Officer Porter did not conduct or witness that search. No weapons were recovered from the frisk or the search. Officer Porter did not witness Officer O'Malley grabbing § 87(2)(b) by his left shoulder, § 87(2)(b) lying facedown in the street, or an officer placing his knees on § 87(2)(b)'s body. Officer Porter did not see officers beating § 87(2)(b) up or grinding their feet into the backs of § 87(2)(b)'s back, knees, or buttocks. Officer Porter did not see § 87(2)(b) lying in a pool of his own blood at the precinct.

Subject Officer Statement: Sergeant John Kocher

Sgt. John Kocher was interviewed at the CCRB on October 17, 2006 (enc. 16a-b). Sgt. Kocher is a § 87(2)(b) American Indian male, § 87(2)(b), with brown hair and hazel eyes. On May 12, 2006, Sgt. Kocher worked from 2:50 p.m. until 11:47 p.m. He was the patrol supervisor that day, dressed in uniform, working with Officer Lawrence Sidman, and assigned to a marked RMP. He did not have his memo book at the time of his interview.

On May 12, 2006, at approximately 5:10 p.m., Sgt. Kocher and Officer Sidman responded to a radio call of someone with a gun at the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. Sgt. Kocher did not think there was a description of the perpetrator given in the initial radio call. Sgt. Kocher and Officer Sidman were the first officers on scene. When they arrived, a female witness approached them and stated that two black males had brandished firearms at her. She pointed at § 87(2)(b) who was standing across the street at the time, and identified him as one of the perpetrators, and said the other perpetrator was on the same side of the street as her, but farther down the block. Sgt. Kocher and Officer Sidman approached § 87(2)(b) and explained to him that they were stopping him because a woman said § 87(2)(b) and his “buddy” had brandished firearms at her. § 87(2)(b) said he did not have a firearm, and Sgt. Kocher frisked him, telling him the frisk was for Sgt. Kocher’s safety and to make sure § 87(2)(b) did not have any weapons on him. § 87(2)(b) was calm and compliant at that time and it was not until the second complainant showed up that § 87(2)(b) became “a little antsy.”

A second female walked across the street and informed Sgt. Kocher that § 87(2)(b) had stabbed her boyfriend about a half-hour ago. Sgt. Kocher noted that § 87(2)(b) serves as a border between the 70th and 67th Precincts. Sgt. Kocher had Officer O’Malley and Officer Porter stay with § 87(2)(b) while he walked about ten feet away to speak with the second female and get more details so he could confer with the 67th Precinct to see if they had a report of a stabbing. While he was speaking to the second female, § 87(2)(b) attempted to flee the scene. While trying to run past Officer Kocher and Officer Porter (who had their four hands up to prevent § 87(2)(b) from getting past them), § 87(2)(b) lost his balance. Sgt. Kocher thought § 87(2)(b) was “trying to spin or something,” and then he leaned against the storefront window of a barbershop or beauty salon that he had been standing in front of, causing the window to “collapse” and § 87(2)(b) to fall to the ground. Sgt. Kocher did not remember which part of § 87(2)(b)’s body touched the window, which way he was facing at the time, or how he fell. The glass was about one-eighth of an inch thick. After § 87(2)(b) fell, Officer O’Malley and Officer Porter waited a second to make sure he did not have any glass in his hand, and during that wait, he got up and ran southbound on § 87(2)(b) in a diagonal line from the sidewalk towards the middle of the street. (From the time Sgt. Kocher walked ten feet away from § 87(2)(b) to the time § 87(2)(b) tried to flee officers, about ten seconds elapsed.) § 87(2)(b) did not say anything as he resisted and fled.

Then, § 87(2)(b) collided with Sgt. Kocher who was still standing with the second female complainant at the edge of the curb. Sgt. Kocher tried to put § 87(2)(b)’s arms behind his back, but he resisted by flailing his arms and kicking both of his legs. In the midst of the struggle, Sgt. Kocher and § 87(2)(b) fell to the ground where Sgt. Kocher continued to try to get § 87(2)(b)’s arms behind his back as he lay facedown in the street. § 87(2)(b) continued to resist and at one point he held onto his belt buckle with his right hand in an effort to keep Sgt. Kocher from handcuffing him. After a couple of minutes, Officer O’Malley, Officer Porter, and Officer Sidman got involved and they, together with Sgt. Kocher, were able to handcuff § 87(2)(b) by using three sets of handcuffs. They used three so as not to break § 87(2)(b)’s arms while he continued to flail his arms and kick his legs. Shortly thereafter, § 87(2)(b) calmed down enough so that the three sets of handcuffs were no longer necessary. At that point, he was placed in one set of handcuffs and transported to the 70th Precinct station house. Sgt. Kocher did not know if any officers from the 67th Precinct were present for this incident.

There were never ten officers beating § 87(2)(b) up and Sgt. Kocher never beat § 87(2)(b) up. No officers, including Sgt. Kocher, ever had their knees on § 87(2)(b)’s left temple and head. No officers, including Sgt. Kocher, ground the bottoms of their feet into § 87(2)(b)’s buttocks and the backs of his knees. Sgt. Kocher did not observe any injuries on § 87(2)(b) nor did he know if § 87(2)(b) was taken to a hospital. He did not see § 87(2)(b) at the precinct station house. To his knowledge, § 87(2)(b) never blacked out during the incident. § 87(2)(b) was not searched until after he was placed under arrest.

Subject Officer Statement: Officer Lawrence Sidman

On December 5, 2006, Officer Lawrence Sidman was interviewed at the CCRB (enc. 27a-b). Officer Sidman is a § 87(2)(b) white male, § 87(2)(b), with brown hair and hazel eyes. On May 12, 2006, Officer Sidman was dressed in uniform, worked from 3:00 p.m. to 11:35 p.m. as Sgt. Kocher’s operator, and was assigned to RMP number 2402. Officer Sidman did not have any memo book entries regarding the incident in question (enc. 26a-b).

Around 5:10 p.m. on May 12, 2006, Officer Sidman and Sgt. Kocher received a radio run of a male with a firearm at § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. There was a description of the man in the radio run, but Officer Sidman did not recall what that was. Officer Sidman

drove Sgt. Kocher to the scene, where they encountered a female on one side of § 87(2)(b) and § 87(2)(b) a black male, on the other side of the street. Officer O'Malley and Officer Porter were there, as well as other unidentified officers. Officer Sidman did not recall the order in which the officers arrived. They approached the female and she told them that § 87(2)(b) had stabbed her boyfriend earlier that day. The female and § 87(2)(b) were "having words" back and forth across the street. Officer O'Malley and Officer Porter were on the other side of the street with § 87(2)(b) but Officer Sidman did not recall why they were there or if Sgt. Kocher told them to go talk to § 87(2)(b). While this was going on, Officer Sidman was talking to the female and trying to find out where her boyfriend was and if he was okay. Officer Sidman did not recall where Sgt. Kocher was or what he was doing.

At some point, § 87(2)(b) tried to come across the street towards the female, at which point Officer O'Malley grabbed § 87(2)(b) somewhere on his body. At that point, he was standing in front of a storefront window. According to Officer Sidman, "it looked like they fell into the storefront" and the window shattered. Officer Sidman did not see § 87(2)(b) fall to the ground after the window shattered. Then, § 87(2)(b) ran into the middle of the street, and Officer Sidman and Sgt. Kocher ran into the middle of the street to stop him. They stopped § 87(2)(b) from further fleeing and they, along with all the other officers that were present, wrestled § 87(2)(b) to ground and placed him in handcuffs. The whole time they were trying to handcuff § 87(2)(b) he was flailing his arms, kicking officers, moving his body around, and holding his arms underneath his body while he lay on the ground. § 87(2)(b) lay facedown, face-up, and on his side during the struggle because he was moving his body around so violently and resisting officers. It took officers a few minutes to handcuff § 87(2)(b) after stopping him in the middle of the street.

§ 87(2)(b) sustained lacerations on his hand from the broken storefront window. Officer Sidman did not sustain any injuries from the incident. Officers never beat or struck § 87(2)(b) nor did they ever kneel on § 87(2)(b)'s head. Officer never used the bottoms of their feet to grind their shoes into any part of § 87(2)(b)'s body. § 87(2)(b) did not lose consciousness or lie in a pool of his blood during this incident. Officer Sidman did not recall if § 87(2)(b) was frisked or searched during the incident.

Subject Officer Statement: Officer Steven Gordon

On December 6, 2006, Officer Steven Gordon was interviewed at the CCRB (enc. 28a-b). Officer Gordon is a § 87(2)(b) white male, § 87(2)(b), with a shaved head and brown eyes. On May 12, 2006, Officer Gordon worked from 3:00 p.m. to 11:35 p.m. He and his partner, Officer Katinas, were dressed in uniform and assigned to patrol sectors G and H in an RMP, whose number he did not recall. He did not have his memo book with him at the time of his interview.

On May 12, 2006, around 5:10 p.m., Officer Gordon and Officer Katinas received a radio transmission of a black male with a firearm at § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. When they arrived at the location, a complainant (whose gender and ethnicity Officer Gordon could not recall) was on the opposite side of the street from § 87(2)(b) talking to Officer O'Malley and Officer Porter. Sgt. Kocher and Officer Sidman arrived shortly after Officer Gordon and his partner. § 87(2)(b) was a short black male, but Officer Gordon could not recall any other details about his appearance. The complainant identified § 87(2)(b) as the man that had pointed a firearm at the complainant and "menaced them with it." Officer O'Malley and Officer Porter crossed the street to question § 87(2)(b) and Officer Gordon and Officer Katinas followed. Officer O'Malley requested § 87(2)(b)'s ID to file a UF 250 and once she gave him back his ID, § 87(2)(b) started acting disorderly. When asked why a UF 250 was needed, Officer Gordon explained that any time officers stop someone and question them (such as in this case where officers had to question § 87(2)(b) after the complainant pointed him out) officers must fill out a UF 250 to document why they stopped and questioned that individual. While Officer O'Malley took § 87(2)(b)'s ID and questioned him, Officer Gordon and Officer Katinas were standing near the two officers, but not close enough to hear what questions were asked or if anyone told § 87(2)(b) why he was being stopped. He did not recall if § 87(2)(b) was frisked or searched when he was stopped and questioned by Officer O'Malley and Officer Porter.

When § 87(2)(b) became disorderly, he began screaming, cursing, and asking why the officers stopped him, flailing his arms, and gesticulating wildly. At that time, a crowd of between fifty and one hundred civilians gathered. Both sides of the street were commercial and people came out of the stores to watch what was going on. Then, Officer O'Malley, Officer Gordon, and Officer Katinas attempted to place § 87(2)(b) in handcuffs. Officers tried to grab § 87(2)(b)'s arm, but they were not able to. § 87(2)(b) who was standing in front of a storefront, swung his body around and his hand collided with the storefront window. Officer Gordon did not know if § 87(2)(b)'s actions caused him to collide with the window, or if

another officer's actions caused him to do so. Officer Gordon did not recall if § 87(2)(b) fell to the ground after colliding with the window. Then, § 87(2)(b) ran about five feet into the middle of the street where officers stopped him and continued to try and handcuff him. While trying to handcuff him, officers wrestled § 87(2)(b) to the ground. Officer Gordon did not know if officers fell on top of § 87(2)(b) who continued to resist violently and move his body around. Officer Gordon was involved in wrestling § 87(2)(b) to the ground and, in the process, he landed on one of his forearms. Officer Gordon did not see how § 87(2)(b) landed on the ground. After about one minute of physical struggle, officers successfully handcuffed § 87(2)(b) while he lay facedown in the middle of the street. Officer Gordon did not recall who actually placed the handcuffs on § 87(2)(b)'s wrists.

Officer Gordon and Officer Katinas went to the hospital as a result of this incident and they left the scene before § 87(2)(b) was taken to the precinct. They both filed Line of Duty Injury Reports; Officer Katinas sustained small cuts and Officer Gordon injured one of his forearms when he fell to the ground. § 87(2)(b) sustained cuts on his hand from colliding with the storefront window, but Officer Gordon did not know if he went to the hospital. No one else was injured during the incident. § 87(2)(b) did not lose consciousness during the incident, nor was he ever lying in a pool of his own blood.

There were six officers total during the incident: Officer Gordon, Officer Katinas, Officer Porter, Officer O'Malley, Sgt. Porter, and Officer Sidman. At no point did officers strike § 87(2)(b) or "beat him up." Officers only used force to stop § 87(2)(b) from fleeing, bring him to the ground, and handcuff him. No officer ever knelt on § 87(2)(b)'s head. Officers never used the bottoms of their feet to grind their shoes into any part of § 87(2)(b)'s body.

Subject Officer Statement: Officer Michael Katinas

Officer Michael Katinas was interviewed at the CCRB on December 5, 2006 (enc. 25a-b). Officer Katinas is a § 87(2)(b) white male, § 87(2)(b), with brown hair and brown eyes. On May 12, 2006, Officer Katinas and Officer Gordon worked from 3:00 p.m. to 11:35 p.m., were dressed in uniform, and were assigned to patrol sectors I and J in RMP number 1590. Officer Katinas read the following from his memo book: "17:10 10-10 § 87(2)(b) and § 87(2)(b) 17:49 92C by 70 George" (enc. 24a-b).

On May 12, 2006, around 5:10 p.m., Officer Katinas and Officer Gordon received a radio run of a male with a firearm at § 87(2)(b) and § 87(2)(b) in Brooklyn. They arrived simultaneously with Sgt. Kocher and his operator, Officer Sidman, as well as Officer O'Malley and Officer Porter who were assigned to another sector. Officer Katinas saw § 87(2)(b) a black male, on the west side of § 87(2)(b) standing in front of a storefront. § 87(2)(b) was arguing with a female who was standing on the opposite side of § 87(2)(b) they were yelling at each other from across the street. Upon arriving at the location, Officer Katinas, Officer Gordon, Officer O'Malley, and Officer Porter crossed § 87(2)(b) and approached § 87(2)(b). The officers approached and questioned him because he fit the description given by the 911 caller of the male with the firearm at that location (Officer Katinas did not recall what that description was, nor could he give a description of § 87(2)(b)). Officer Katinas did not recall what questions Officer O'Malley asked § 87(2)(b). The officers stood in front of § 87(2)(b) who stood with his back to the storefront window. Officer Katinas did not recall the four officers' physical positions in relation to each other.

Then, Sgt. Kocher approached the four officers and told them that the female on the other side of the street had just informed him that § 87(2)(b) had stabbed her boyfriend earlier that day. At some point between the beginning and end of the incident, an officer went to frisk § 87(2)(b) for the officers' safety. Officer Katinas did not recall who performed that frisk, but he was certain he did not perform it. No officer searched § 87(2)(b). As the unidentified officer attempted to frisk him, § 87(2)(b) turned around quickly "with force" while flailing his body and fell into the glass storefront he was standing in front of, causing it to shatter. When asked to articulate how § 87(2)(b)'s flailing led to him falling into the storefront, Officer Katinas said, "I don't know, it just happened." Officer Katinas did not know which way § 87(2)(b) turned before making contact with the window. Officer Katinas did not remember where Officer Gordon was at that point or what he was doing. He did not remember which part of § 87(2)(b)'s body went through the window.

When § 87(2)(b) broke the storefront window, he did not fall to the ground. He immediately ran past the four officers and into the middle of § 87(2)(b). The four officers ran after him and stopped him as he reached the double yellow lines. All six officers who were on scene had to assist in handcuffing § 87(2)(b) because he was resisting so violently. § 87(2)(b) resisted by flailing his arms and legs, punching,

kicking, and spitting at officers, and cursing. At some point while officers were struggling with § 87(2)(b) he ended up on lying facedown on the ground. Officer Katinas did not recall how § 87(2)(b) came to be lying on the ground. After several minutes, officers were able to handcuff § 87(2)(b) by placing a handcuff on one hand and then on the other. Officers never “beat up” § 87(2)(b) kneeled on his head, or ground the bottoms of their shoes into any part of § 87(2)(b) s body. § 87(2)(b) did not lose consciousness during the incident, nor was he ever lying in a pool of his own blood.

Officers transported § 87(2)(b) to the precinct and Officer Katinas went to the hospital for contusions and hematoma to his right arm, injuries he sustained while struggling to handcuff § 87(2)(b) Officer Katinas filed a Line of Duty Injury Report. Officer Katinas believed § 87(2)(b) was taken to the hospital, but he did not recall the extent of § 87(2)(b) s injuries.

Witness Officer Statement: Sergeant Stephen Lane

Sgt. Stephen Lane was interviewed at the CCRB on September 13, 2006 (enc. 15a-b). Sgt. Lane is a § 87(2)(b) white male with brown hair and blue eyes. Sgt. Lane was RDO on May 12, 2006. When shown a photograph of § 87(2)(b) he stated he did not recognize him and had never interacted with him. When given a brief description of the incident, Sgt. Lane restated that he was not involved in the incident in question. His memo book confirms that he was RDO on May 12, 2006 (enc. § 87(2)(b)).

Medical Records

§ 87(2)(a) PBH §18(6)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Police Department Documents

The SPRINT printout for job number § 87(2)(b) shows that an anonymous female called 911 on May 12, 2006, at 5:10 p.m. and reported that there was a black male wearing a white tank top with a firearm outside her restaurant. Her restaurant was located at § 87(2)(b) between § 87(2)(b) and § 87(2)(b). There were two other males possibly wearing blue shirts. 70th Precinct sectors G, and I, and a sergeant, responded to the call. At 5:22 p.m. additional units were requested for crowd control. At 5:49 p.m., there was one arrest at the location (enc. 30a-b). The 70th Precinct tour 3 roll call shows that on May 12, 2006, Sgt. Kocher was the patrol supervisor and Officer Sidman was his operator; they were assigned to RMP number 1425. It also shows that Officer Gordon and Officer Katinas were assigned to patrol sectors I and J in RMP number 2227. Officer O’Malley and Officer Porter were assigned to patrol sectors G and H in RMP number 1699 (enc. 31a-c). The 70th Precinct command log shows that on May 12, 2006, at 5:30 p.m. Officer O’Malley arrested § 87(2)(b) at § 87(2)(b) § 87(2)(b). § 87(2)(b) had an injured finger and was transported to § 87(2)(b) at 7:30 p.m. (enc. 32a). The UF 250 log for the 67th Precinct shows that Officer O’Malley filed a Stop, Question, and Frisk Report for § 87(2)(b) on May 12, 2006. § 87(2)(a) 160.50 § 87(2)(b) Property Vouchers § 87(2)(b) and § 87(2)(b) show that three photographs, a cell phone, a cell phone battery, and a key were documented as a result of § 87(2)(b) s arrest (enc. 34a-b).

Officer/Complainant Histories

The CCRB has not substantiated any allegations against Sgt. John Kocher in seven years, Officer Megan O’Malley in four years, Officer Thomas Porter in four years, Officer Michael Katinas in two years, Officer Steven Gordon in two years, or Officer Lawrence Sidman in thirteen years of service to the NYPD (enc. 2a-7a). This is § 87(2)(b) s second CCRB complaint (enc. 8a). § 87(2)(b)

§ 87(2)(b) This is § 87(2)(b) s and § 87(2)(b) s first CCRB complaint (enc. 9a-10a).

Complainant’s Criminal Conviction History

§ 87(2)(b)

Officer Identification

Sgt. Kocher admitted that he and Officer Sidman stopped § 87(2)(b) before the other officers arrived and that he frisked § 87(2)(b) at that time. Using his and § 87(2)(b)'s statements, Officer Sidman was identified as the officer who allegedly searched § 87(2)(b) after Sgt. Kocher frisked him. § 87(2)(g)

It is undisputed that multiple officers stopped § 87(2)(b) across the street from § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. It is also undisputed that while Officer O'Malley was questioning § 87(2)(b) his body collided with the window of a storefront, causing the window to break. Consequently, § 87(2)(b) sustained a laceration on one of the fingers on his right hand. It is also undisputed that § 87(2)(b) was arrested after a physical altercation with officers. § 87(2)(g)

Assessment of Evidence

There was no dispute that the small laceration on his right hand resulted from his hand breaking the glass window and there was no other medical record evidence that ten officers beat § 87(2)(b) up or used the other force alleged. Also, Officer O'Malley noted in the command log that § 87(2)(b) had a laceration on his hand, but did not note any other physical injuries that might indicate excessive force was used in affecting his arrest.

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§ 87(2)(g)

Officer O'Malley said Officer Porter frisked § 87(2)(b) while Officer Porter said either he or Officer O'Malley frisked him. Sgt. Kocher said he frisked § 87(2)(b) but that was before the other four officers arrived and he and Officer Sidman were the only officers on scene. Officer Katinas said § 87(2)(b) was frisked by one of the other five officers present, but he did not recall who performed that frisk. Officer Sidman said he did not recall a frisk or a search of § 87(2)(b) nor did Officer Gordon.

Sgt. Kocher stated he frisked § 87(2)(b) for his safety to make sure § 87(2)(b) did not have any weapons on him. This was right after talking to a female witness who pointed to § 87(2)(b) and said he was one of the two males that had brandished a firearm at her. Officer O'Malley stated Officer Porter frisked § 87(2)(b) for his safety after Sgt. Kocher told them to stop § 87(2)(b) § 87(2)(a) 160.50

The additional circumstances that led to the stop were as follows: a report from a victim/witness/officer, the area has a high incidence of criminal possession of weapons, the time of day or week corresponds to criminal activity, and § 87(2)(b)'s evasive/false/inconsistent responses to officers' questions. § 87(2)(a) 160.50

Officer Porter stated that he and Officer O'Malley stopped § 87(2)(b) upon Sgt. Kocher's instruction and either he or Officer O'Malley frisked § 87(2)(b) for their safety and to make sure he did not have any weapons on him. Although Officer Katinas did not recall who frisked § 87(2)(b) he stated the frisk was for the officer's safety. According to Officer Katinas, § 87(2)(b) matched the 911 caller's description of the man with the firearm and the female with whom he had been arguing informed Sgt. Kocher that § 87(2)(b) had stabbed her boyfriend earlier that day.

Allegation A) Abuse: Sgt. John Kocher stopped § 87(2)(b)

Allegation B) Abuse: Officer Lawrence Sidman stopped § 87(2)(b)

Allegation C) Abuse: Sgt. John Kocher frisked § 87(2)(b)

Allegation E) Abuse: Officer Thomas Porter frisked § 87(2)(b)

Sgt. Kocher and Officer Sidman stopped § 87(2)(b) upon arriving on scene. They were called to the incident location because of a radio run of a black man in a white tank top with a gun. When they arrived at the location where the 911 call originated from, they encountered a female complainant who pointed to § 87(2)(b) who was across the street and identified him as the man who had brandished a gun inside her restaurant. Also, all officers said that § 87(2)(b) matched the description given in the radio run and he was across the street from the restaurant. Barry Kamins writes, "an anonymous tip of a 'man with a gun' relayed over a radio communication to an officer and providing a specific location does not, *without more*, constitute a reasonable suspicion to stop and frisk anyone who may happen to fit that description....There must be some *additional* facts or circumstances" (enc. 1a) § 87(2)(g)

In regards victims and citizen-informants that officers encounter at the location and that identify someone as possessing a gun or having just committed a violent crime, Barry Kamins writes that this information may not be enough to arrest the person, but it is "sufficient to justify a stop and a frisk of a suspect" (enc. 1b). He goes on to say, "reasonable suspicion for a stop and frisk can be justified by the fact that the defendant is found in close temporal and spatial proximity to the crime" (enc. 1c). § 87(2)(g)

it is recommended that Allegations A, B, C, and E be exonerated.

Allegation D) Abuse: Officer Lawrence Sidman searched § 87(2)(b)

§ 87(2)(b) alleged that while Sgt. Kocher frisked him, Officer Sidman searched all of his pants and jacket pockets. None of the six officers present for the incident recalled § 87(2)(b) being searched before he was placed under arrest. § 87(2)(g)

it is recommended that Allegation D be unsubstantiated.

Allegation F) Force: Officer Thomas Porter used physical force against § 87(2)(b)

Allegation G) Force: Sgt. John Kocher used physical force against § 87(2)(b)

Allegation H) Force: Officer Lawrence Sidman used physical force against § 87(2)(b)

Allegation I) Force: Officer Michael Katinas used physical force against § 87(2)(b)

Allegation J) Force: Officer Steven Gordon used physical force against § 87(2)(b)

Allegation K) Force: Officer Megan O'Malley used physical force against § 87(2)(b)

§ 87(2)(b) alleged that officers knelt on his head and ground their feet into his buttocks and the backs of his knees and back. § 87(2)(g)

. At the time § 87(2)(b) fled from officers, he was being detained so that officers could gather information about the crimes he was suspected of having committed. § 87(2)(g)

Then, a second female identified § 87(2)(b) as the man who stabbed her boyfriend earlier that day. In order to call the 67th Precinct and find out if a report of a stabbing had been made and locate any possible witnesses, officers temporarily detained § 87(2)(b). Barry Kamins writes, “under certain circumstances, the police may, after making a *lawful* stop, detain a suspect for a brief period of time to investigate criminal activity” (enc. 1d). § 87(2)(g)

it is recommended that Allegations F, G, H, I, J, K be exonerated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: